

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-08

**TZ SSE Buyer, LLC, Complainant v. Overseas Container Line Limited
and OOCL (Europe) Limited, Respondents**

MOTION TO DISMISS THE SECOND AMEDED COMPLAINT WITH PREJUDICE

Pursuant to the Presiding Officer's Order granting the Joint Motion for Approval and Confidential Treatment of Settlement Agreement and Release, dated April 1, 2025, and in accordance with 46 C.F.R. § 502.72(a)(3), Complainant TZ SSE Buyer, LLC ("Complainant") hereby moves to dismiss the above-captioned matter with prejudice pursuant to the terms of the Parties' Confidential Settlement Agreement.

The Parties reached a Confidential Settlement Agreement and Release, which was submitted to the Presiding Officer in support of the Joint Motion for Approval and Confidential Treatment. The Presiding Officer granted that motion on April 1, 2025. Under the terms of the Settlement Agreement, Complainant agreed to dismiss its Second Amended Complaint upon receipt of the agreed settlement funds, which it has now received.

Accordingly, Complainant respectfully requests that the Amended Complaint be dismissed with prejudice.

Dated: April 4, 2025

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on April 4, 2025, a true and correct copy of the foregoing **MOTION TO DISMISS THE SECOND AMENDED COMPLAINT WITH PREJUDICE** was served by email on all counsel of record in accordance with 46 CFR Part 502.

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